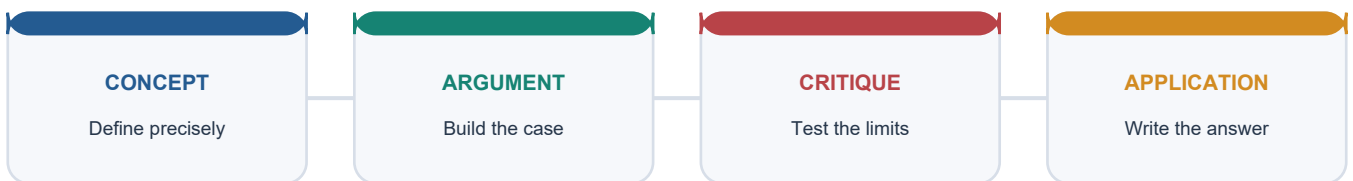


COMPLETE LEARNING SESSION

Polity 27 - Election Commission - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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POLITY 27 - ELECTION COMMISSION

SOURCE CONTROL AND LIMITS

- **Control date:** 7 September 2026, Asia/Kolkata.
- **Source order:** canonical Basic/Core Markdown; canonical Advanced Markdown; OCR-searchable local M. Laxmikanth polity PDFs; official Constitution, Gazette/India Code statute text, RPA 1950/1951, Conduct of Elections Rules 1961, Symbols Order 1968, ECI manuals and pages, Supreme Court judgments/orders, parliamentary material; Qdrant not required.
- **Appointment statute:** official Gazette Act 49 of 2023 was used because the India Code PDF endpoint returned HTTP 403 during the live check. The Gazette text confirms the Law-Minister-led Search Committee, PM-LoP-Cabinet-Minister Selection Committee, six years/65, no reappointment, Supreme-Court-judge salary and repeal of the 1991 Act.
- **Rules limit:** no separate general appointment-rule instrument changing the Act's selection architecture was located. Conduct and roll procedure is controlled by the existing election statutes, rules, ECI instructions and case law identified here.
- **Current-case limit:** the official 22 March 2024 Supreme Court order was located. No later official stay or final merits decision on section 7 was located through the control date; absence of a located judgment is not a claim that no procedural listing occurred.
- **Current ECI roster:** the official ECI page lists CEC Gyanesh Kumar and ECs Dr Sukhbir Singh Sandhu and Dr Vivek Joshi; names are date-sensitive and not a constitutional rule.
- **Evidence key:** **Fact** = directly grounded in named constitutional/statutory/official material; **Analysis** = reasoned exam use; **Qualification** = legal or evidentiary boundary.

ROADMAP

concept -> constitutional spine -> composition/appointment/removal
-> secretariat/staff -> schedule/rolls -> RPA 1950/1951
-> candidates/money/media -> parties/symbols/MCC
-> EVM-VVPAT -> Article 324 case law -> disputes -> reform

Core is answer-complete. Optional Advanced depth appears only after the Basic, MCQ and PYQ/application blocks. Consolidated register notes are the final H2.

BASIC LEARNING SESSION

SESSION 1 - ARTICLE 324: A CONSTITUTIONAL TRUST INSTITUTION

EQUAL ELECTORAL CITIZENSHIP

|
accurate roll -> fair candidature -> neutral campaign
| |
secure poll -> auditable count -> lawful result

LEGITIMATE REPRESENTATIVE GOVERNMENT

Definition. The Election Commission of India (ECI) is the permanent constitutional body in Article 324 that controls electoral rolls and conducts elections to Parliament, State legislatures, the President and the Vice-President.

Answer line. The ECI does not choose rulers; it protects the conditions in which electors can choose them freely.

Keywords. Article 324; superintendence, direction and control; free and fair elections; constitutional trust; legal limits.

ECI-specific argument.

- **Claim:** Article 324 creates an independent electoral manager because the incumbent executive cannot be the final judge of the contest in which it participates.

- **Named evidence:** The constitutional text vests the complete supervisory triad - superintendence, direction and control - in the ECI.
- **Analysis:** A single constitutional authority can coordinate rolls, personnel, polling, counting and emergency corrective action across India.
- **Qualification:** Independence is not sovereignty; the ECI remains bound by the Constitution, enacted election law, natural justice and judicial review at the proper stage.

Evidence. Article 324(1) expressly includes preparation of electoral rolls and conduct of the four named classes of elections.

Prelims trap. Article 324 does not cover Panchayat, municipal, cooperative-society or internal party organisational elections.

Mains use. Begin an independence answer with the conflict-of-interest reason for an autonomous election manager, then evaluate appointment, staff, finance and reason-giving.

Recap. Broad constitutional supervision + statutory discipline + reviewable action = credible electoral administration.

SESSION 2 - THE DECODED CONSTITUTIONAL SPINE: ARTICLES 325-329, 103, 192, 243K AND 243ZA

Provision	Learner-facing rule	Boundary
Article 325	one general electoral roll; no exclusion or special roll only on religion, race, caste or sex	citizenship, age, residence and lawful disqualifications still apply
Article 326	adult suffrage for Lok Sabha and State Assemblies	voting age is 18 after the 61st Amendment Act, 1988
Articles 327-328	Parliament legislates; States have a subordinate field for their legislatures	State law yields to parliamentary law
Article 329	delimitation/allotment bar and election-petition channel	not blanket immunity from judicial review
Articles 103/192	President/Governor decides specified sitting-member disqualification questions after obtaining ECI opinion	Tenth Schedule belongs to Speaker/Chairman
Articles 243K/243ZA	State Election Commission controls Panchayat/municipal elections	ECI and SEC are distinct constitutional bodies

Definition. Part XV distributes rule-making, management and dispute resolution instead of concentrating every election function in the ECI.

Answer line. Article 324 supplies the manager, Articles 325-328 supply equality and legislative structure, and Article 329 protects the timetable while preserving the post-result remedy.

Keywords. general roll; adult suffrage; parliamentary law; election petition; ECI opinion; State Election Commission.

ECI-specific argument.

- **Claim:** The constitutional design separates electoral administration from local-body management and final judicial adjudication.
- **Named evidence:** Articles 243K and 243ZA assign local polls to SECs; Articles 103 and 192 create a narrow ECI opinion role.
- **Analysis:** Separation prevents Article 324 from becoming an all-purpose election clause and preserves federal and adjudicatory boundaries.
- **Qualification:** The President or Governor is the formal decision-maker under Articles 103/192, while the ECI opinion has controlling constitutional importance; defection is outside this route.

Evidence. The 61st Amendment Act, 1988 changed Article 326 from twenty-one to eighteen years.

- **Claim:** A statutory process improves legality but does not by itself settle institutional-independence concerns.
- **Named evidence:** Sections 5-8 of Act 49 of 2023 set eligibility, a Law-Minister-led search and a PM-LoP-Cabinet-Minister selection committee; section 8 permits consideration outside the search panel.
- **Analysis:** The process is rule-bound and includes Opposition participation, yet the executive controls two of three selection votes and the search stage.
- **Qualification:** *Anoop Baranwal* did not permanently constitutionalise CJI membership; it expressly operated only until Parliament made a law.

Current status - checked through 7 September 2026. The Act operates. The Supreme Court's official order of 22 March 2024 refused interim interference and treated observations as tentative. No later official stay or final merits judgment was located; therefore do not describe the Act as upheld or struck down.

Evidence. Section 5 requires Secretary-equivalent rank, integrity and knowledge of and experience in election management and conduct.

Prelims trap. The enacted Search Committee is headed by the Minister of Law and Justice, not the Cabinet Secretary.

Mains use. Separate parliamentary competence, process strengths, independence risks and current judicial status.

Recap. Temporary CJI panel ended with legislation; constitutional adequacy remains a distinct question.

SESSION 5 - TENURE, SALARY, SERVICE CONDITIONS, REMOVAL AND REGIONAL COMMISSIONERS

Office	Term/status	Removal
CEC	six years or age 65, whichever earlier; no reappointment	like a Supreme Court judge
other EC	same statutory term and salary	President only on CEC recommendation
Regional Commissioner	assistance office under Article 324(4)	President only on CEC recommendation

Definition. Article 324(5) constitutionalises the core security rules; Act 49 of 2023 supplies the present term, salary and related conditions.

Answer line. Equality in vote does not mean equality in removal protection.

Keywords. six years; sixty-five; no reappointment; aggregate six-year cap; Supreme Court judge salary; disadvantageous variation.

ECI-specific argument.

- **Claim:** The CEC has the strongest security because removal follows the same manner and grounds as a Supreme Court judge.
- **Named evidence:** Article 324(5) protects the CEC's tenure and bars disadvantageous variation of service conditions after appointment; section 11 of the 2023 Act restates the removal routes.
- **Analysis:** A high threshold shields the institutional chair from ordinary executive pleasure.
- **Qualification:** Other ECs are protected from direct removal but remain dependent on a CEC recommendation; equalising protection is a reform proposal, not current law.

Evidence. Section 9: six years or sixty-five, no reappointment, and no more than six years in aggregate when an EC becomes CEC. Section 10: salary equal to a Supreme Court judge. The constitutional non-variation safeguard is textually for the CEC; the Act also protects incumbents at commencement from disadvantageous change.

Prelims trap. Six years/65 is statutory, not written into Article 324.

Mains use. Evaluate appointment and removal together: a secure exit cannot fully cure a partisan entry process.

Recap. Strong CEC security + weaker EC security + common statutory term.

SESSION 6 - SECRETARIAT, STAFF DEPENDENCE AND ARTICLE 324(6)

ECI headquarters
|
Chief Electoral Officers -> District Election Officers/Returning Officers
|
registration machinery Presiding/Polling Officers
|
staff supplied by Union/States when ECI requests under Article 324(6)

Definition. The ECI is a permanent constitutional body but conducts mass elections through personnel and infrastructure substantially drawn from Union and State administrations.

Answer line. Formal independence can be weakened if an autonomous Commission depends on governments for staff, secretariat capacity and finance.

Keywords. Article 324(6); President; Governor; staff availability; deemed deputation; permanent secretariat; budget autonomy.

ECI-specific argument.

- **Claim:** Article 324(6) creates a constitutional duty to supply staff but not a wholly independent election civil service.
- **Named evidence:** The President or Governor must make staff available when the ECI requests it for its constitutional functions.
- **Analysis:** ECI control during election duty promotes neutrality, but recruitment, career incentives and infrastructure remain located in ordinary government systems.
- **Qualification:** Administrative dependence does not prove partisan conduct; the reform case is preventive institutional design.

Evidence. *Anoop Baranwal* urged consideration of a permanent secretariat and charged expenditure, but that appeal did not itself amend the Constitution or budget law.

Prelims trap. Article 324 does not contain an Article-322-style blanket clause charging all ECI expenditure on the Consolidated Fund of India.

Mains use. Propose an independent secretariat, predictable finance, transparent deployment criteria and protection for officers acting under ECI control.

Recap. Staff duty is constitutional; institutional dependence remains an independence issue.

SESSION 7 - ELECTION TIMETABLE, BY-ELECTIONS, ADJOURNMENT, FRESH POLL AND COUNTERMAND

ECI schedule -> statutory notification -> nominations -> scrutiny -> withdrawal
-> campaign -> poll -> count -> result -> election petition

disruption ladder:
local interruption -> adjourned poll
destroyed/lost voting material -> poll void + fresh poll
booth capturing -> adjournment/countermand as statute permits
candidate death in recognised-party setting -> statutory postponement route

Definition. The ECI fixes and supervises the programme, while formal notifications and corrective steps must follow the Constitution, RPA 1951 and Conduct of Elections Rules, 1961.

Answer line. Election scheduling is broad supervision; countermanding is not free-standing political discretion.

Keywords. schedule announcement; notification; section 151A; sections 52, 57, 58, 58A; repoll; recorded reasons.

ECI-specific argument.

- **Claim:** Speed is essential, but each disturbed-poll remedy must be tied to its statutory trigger.
- **Named evidence:** RPA 1951 sections 57, 58 and 58A distinguish adjournment, destruction/loss and booth capturing.

- **Analysis:** Graduated remedies preserve votes already lawfully cast while correcting only the damaged stage.
- **Qualification:** Final validity of a returned candidate's election belongs to the High Court petition route, not an unlimited post-result ECI power.

Evidence. Section 151A ordinarily requires a by-election within six months, except where the remaining term is under one year or ECI, in consultation with the Central Government, certifies difficulty from unavoidable circumstances.

Prelims trap. "Every vacancy must be filled within six months without exception" is false.

Mains use. Show the sequence, identify the precise disruption and state why proportional correction protects both integrity and continuity.

Recap. Programme power is broad; corrective power is trigger-specific.

SESSION 8 - RPA 1950: ALLOCATION, DELIMITATION AND INCLUSIVE ELECTORAL ROLLS

RPA 1950

```
-- allocation of seats and constituency framework
-- electoral-roll preparation and revision
-- section 19: age + ordinary residence
-- sections 21-23: revision, correction/deletion, inclusion
-- four qualifying dates: 1 Jan | 1 Apr | 1 Jul | 1 Oct
+-- Delimitation Commission remains a distinct statutory authority
```

Definition. The RPA 1950 builds the representative and voter-list infrastructure on which the RPA 1951 election process operates.

Answer line. Roll integrity has two equal limbs: include every eligible citizen and remove only ineligible entries through fair procedure.

Keywords. ordinary residence; qualifying date; claims and objections; notice; inclusion; deletion; Delimitation Commission.

ECI-specific argument.

- **Claim:** Accurate rolls are the first electoral safeguard because a secure poll cannot repair wrongful exclusion.
- **Named evidence:** Sections 21-23 create revision, correction/deletion and inclusion procedures; the Election Laws (Amendment) Act, 2021 enabled four qualifying dates.
- **Analysis:** More frequent entry points reduce age-based exclusion, while notice and hearing protect against mass or erroneous deletion.
- **Qualification:** Aadhaar may assist identity verification under the statutory framework but is not proof of citizenship; non-submission cannot be treated mechanically.

Current judicial control. In *Association for Democratic Reforms v. ECI*, 2026 INSC 564 (27 May 2026), the Supreme Court recognised ECI power to conduct special intensive revision and a limited electoral-purpose citizenship inquiry, but not final citizenship adjudication; genuine citizenship doubts belong to the competent Citizenship Act authority.

Evidence. Article 325 forbids discriminatory roll exclusion, but it does not erase citizenship, age, residence or lawful disqualification requirements.

Prelims trap. The ECI participates in delimitation as the statute provides; it is not the ordinary sole Delimitation Commission.

Mains use. Evaluate accuracy, inclusion, notice, accessible appeal, migration, disability access and audit of deletions.

Recap. Inclusion and purification are complementary, not competing, duties.

SESSION 9 - RPA 1951: CONDUCT, QUALIFICATIONS, DISQUALIFICATIONS, CORRUPT PRACTICES AND DISPUTES

RPA 1951 field	High-yield provisions
candidature and conduct	nominations, scrutiny, polling, counting, results
disqualification	sections 8, 8A, 9, 9A, 10, 10A and related remedies
corrupt practices	section 123
party registration	section 29A
expenses	sections 77-78 and section 10A consequence
election disputes	sections 80-116A; High Court then Supreme Court appeal

Definition. The RPA 1951 governs the operative contest and post-result challenge, whereas the RPA 1950 primarily structures representation and rolls.

Answer line. The ECI administers the election, but courts determine an election petition and serious corrupt-practice liability through the statutory route.

Keywords. conviction; corrupt practice; election expense account; election petition; High Court; section 116A appeal.

ECI-specific argument.

- **Claim:** Electoral administration and electoral adjudication are deliberately separated.
- **Named evidence:** Sections 80 and 80A assign election petitions to the High Court; section 116A permits appeal to the Supreme Court.
- **Analysis:** The ECI can prevent, monitor and refer violations without becoming the final court deciding whether a returned election is void.
- **Qualification:** ECI gives constitutionally required opinions in specified disqualification routes and may exercise statutory remedial powers, but cannot invent new grounds.

Evidence. *Lily Thomas v. Union of India* (2013) invalidated section 8(4), ending the sitting-member shield against immediate conviction-based disqualification.

Prelims trap. A stay of sentence alone is not the same as a stay of conviction for disqualification consequences.

Mains use. Distinguish substantive grounds, decision-maker, remedy and timing.

Recap. RPA 1951 regulates the contest; the High Court protects the post-result judicial remedy.

SESSION 10 - NOMINATIONS, AFFIDAVITS AND CRIMINAL ANTECEDENTS

nomination -> affidavit -> public disclosure -> scrutiny
 |
 qualification | criminal cases | assets/liabilities | education
 |
 false/defective disclosure -> statutory/court consequence, not arbitrary rejection

Definition. Candidate disclosure converts the voter's freedom of expression into an informed electoral choice.

Answer line. Disclosure is not a declaration of guilt; it is a democratic information remedy against concealed risk.

Keywords. Form 26; Article 19(1)(a); criminal antecedents; assets and liabilities; party publicity; informed choice.

ECI-specific argument.

- **Claim:** ECI's affidavit architecture strengthens accountability before conviction-based disqualification becomes available.
- **Named evidence:** *Union of India v. Association for Democratic Reforms* (2002) and *PUCL v. Union of India* (2003) protected voter access to candidate information.

- **Analysis:** Information permits electoral sanction where criminal trials are slow and helps media and civil society verify conflicts and wealth growth.
- **Qualification:** Pending cases do not equal guilt, and nomination rejection must follow statute rather than moral suspicion.

Evidence. *Public Interest Foundation v. Union of India* (2018) required prominent disclosure and repeated publicity; the 13 February 2020 follow-up required parties to publish reasons for selecting candidates with pending criminal cases, based on qualifications rather than mere winnability.

Prelims trap. The Supreme Court did not create a blanket pre-conviction ban on every person facing a criminal charge.

Mains use. Pair faster trials and accurate disclosure with safeguards against politically motivated cases.

Recap. Know, scrutinise, decide - without replacing presumption of innocence.

SESSION 11 - ELECTION EXPENDITURE, PAID NEWS, MEDIA AND SOCIAL MEDIA

Risk	ECI-linked response	Limit
candidate overspending	account, ceiling, observers and monitoring teams	party expenditure is not governed by one identical candidate ceiling
paid news	Media Certification and Monitoring Committees; expense attribution where proved	evidence and legal route remain necessary
political advertising	pre-certification rules for covered electronic/social-media ads	ECI is not a general media censor
misinformation/deepfakes	MCC directions plus applicable election, criminal and technology law	lawful speech and platform jurisdiction matter

Definition. Campaign-finance and media regulation seeks a level playing field by making influence visible, attributable and reviewable.

Answer line. Money power is not only expenditure volume; it is hidden sponsorship, surrogate publicity and unequal amplification.

Keywords. sections 77-78; section 10A; paid news; MCMC; pre-certification; social media; audit trail.

ECI-specific argument.

- **Claim:** ECI monitoring is strongest when administrative detection connects to a clear statutory consequence.
- **Named evidence:** RPA 1951 requires candidate expense accounts and permits disqualification for failure to lodge them as required.
- **Analysis:** Observers, flying squads and media monitoring can identify hidden expenditure before it distorts the campaign.
- **Qualification:** ECI cannot create unlimited party-spending offences or platform regulation without legislative authority.

Evidence. Paid news may be added to a candidate's account on evidence; separate bribery, false-statement or other offences require their own elements.

Prelims trap. Candidate expenditure ceiling and total political-party campaign expenditure are not the same legal category.

Mains use. Recommend real-time disclosure, third-party spending rules, transparent digital-ad libraries and reasoned enforcement.

Recap. Detect -> attribute -> apply the correct legal consequence.

SESSION 12 - POLITICAL-PARTY REGISTRATION AND LIMITED DEREGISTRATION

association applies under RPA 1951 section 29A

constitution, office-bearers, prescribed particulars,
allegiance to constitutional principles

ECI registration

registration != recognition != reserved symbol

Definition. Section 29A registration gives an association legal status as a political party for election law; recognition is a separate Symbols Order status.

Answer line. The ECI has a registration power, not a general supervisory power to dissolve political parties.

Keywords. section 29A; registered unrecognised party; recognition; fraud; limited review; internal democracy.

ECI-specific argument.

- **Claim:** Limited deregistration protects political association from an unenumerated administrative death penalty.
- **Named evidence:** *Indian National Congress (I) v. Institute of Social Welfare* (2002) held that ECI lacks a general power to deregister, subject to narrow situations such as fraud, section 29A(9)-type consequences or a party becoming unlawful under competent law.
- **Analysis:** The holding respects statutory limits but leaves weak enforcement against dormant, non-compliant or internally undemocratic parties.
- **Qualification:** Deregistration, derecognition and symbol consequences are distinct; reform requires legislation with hearing and appeal.

Evidence. Registration applications must contain the statutory constitutional-allegiance declaration.

Prelims trap. Violation of an ECI guideline does not automatically prove a general implied power to cancel registration.

Mains use. Propose audited accounts, periodic compliance, internal-election disclosure and a narrowly drafted deregistration law.

Recap. Registration opens the legal door; recognition and symbols are later, separate questions.

SESSION 13 - RECOGNITION, SYMBOLS AND PARTY SPLITS

registered party

Symbols Order tests -> recognised National/State party OR unrecognised party

reserved symbol / free symbol rules

rival groups claim old party -> paragraph 15 adjudication
organisational wing + legislative wing + continuity evidence

Definition. The Election Symbols (Reservation and Allotment) Order, 1968 structures recognition, symbol reservation/allotment and disputes between rival groups of a recognised party.

Answer line. A symbol dispute is an electoral-identity adjudication, not a judicial settlement of every property or constitutional dispute inside a party.

Keywords. Symbols Order 1968; paragraph 15; recognised party; reserved symbol; legislative wing; organisational wing.

ECI-specific argument.

- **Claim:** Symbol adjudication protects voter clarity when competing factions claim the same electoral identity.
- **Named evidence:** *Kanhiya Lal Omar v. R.K. Trivedi* (1985) upheld the Symbols Order as a valid exercise connected with the Conduct of Elections Rules and Article 324.
- **Analysis:** A central decision prevents rival candidates from presenting indistinguishable party signals on the ballot.

- **Qualification:** ECI applies the Order's electoral tests and evidence; it does not acquire unlimited authority over all internal party governance.

Evidence. Recognition depends on notified electoral-performance criteria, not merely registration age or national ambition.

Prelims trap. Every registered party does not receive a permanently reserved symbol.

Mains use. Link transparent evidentiary tests, reasoned orders and internal-democracy reform.

Recap. Section 29A registers; the Symbols Order recognises and allocates.

SESSION 14 - MODEL CODE OF CONDUCT: FAST, NON-STATUTORY AND LEGALLY BOUNDED

schedule announced

```

|
MCC begins -> party/candidate conduct | meetings | processions | polling day
|           observers | party in power | manifestos
complaint -> response -> censure/restraint/administrative correction
|
if conduct also violates statute -> police/prosecution/other legal route
|
election process completed -> MCC ends

```

Definition. The MCC is a consensus-based, non-statutory campaign code enforced by the ECI through Article 324 supervision and existing legal powers.

Answer line. The MCC is not a penal statute, but the same act may independently violate the RPA, Bharatiya Nyaya Sanhita or another law.

Keywords. Kerala 1960; 1968-69 evolution; schedule announcement; level playing field; non-statutory; statutory overlap.

ECI-specific argument.

- **Claim:** Non-statutory form gives preventive speed during a short campaign.
- **Named evidence:** ECI's MCC manual traces evolution from the 1960 Kerala code and later inter-party consensus; Article 324 supports rapid administrative action.
- **Analysis:** Transfers, official advertising restraint and campaign directions can prevent irreversible advantage before a criminal trial could conclude.
- **Qualification:** Speed cannot excuse inconsistent treatment, vague orders or punishment unsupported by law.

Evidence. *Abhiram Singh v. C.D. Commachen* (2017) broadly construed section 123(3)'s prohibition on appeals to religion, race, caste, community or language; this is statutory corrupt-practice law, not merely MCC etiquette.

Prelims trap. "MCC has no legal effect because it is non-statutory" is as wrong as "every MCC breach is a crime."

Mains use. Support a hybrid reform: retain flexible MCC, codify selected serious fields, publish complaint timelines and reasoned outcomes.

Recap. Fast code + existing law + transparent reasons.

SESSION 15 - EVM, VVPAT, RULES 49MA/56D AND THE 2024-25 JUDICIAL CONTROL

Ballot Unit -> Control Unit records vote -> VVPAT displays slip -> sealed drop box

Rule 49MA: claimed mismatch -> declaration + test-vote procedure

Rule 56D: Returning Officer may order slip count on application; slip count controls discrepancy

counting protocol + mandatory sample verification + court-directed safeguards

Definition. EVM-VVPAT combines electronic recording with a voter-visible paper audit trail retained for verification.

Answer line. Electoral technology must be assessed through architecture, custody, audit and remedy - neither presumed fraudulent nor declared infallible.

Keywords. VVPAT; paper trail; Rule 49MA; Rule 56D; Symbol Loading Unit; burnt-memory/microcontroller verification.

ECI-specific argument.

- **Claim:** Verifiability, not a return to manual ballots by assertion, is the constitutional response to technology distrust.
- **Named evidence:** *Subramanian Swamy v. ECI* (2013) required phased VVPAT introduction; *Association for Democratic Reforms v. ECI* (26 April 2024) rejected return to paper ballots and universal 100% VVPAT counting while adding safeguards.
- **Analysis:** Preserving Symbol Loading Units and enabling specified candidate-requested technical verification creates an evidence route without making every result depend on full manual recount.
- **Qualification:** The 2024 judgment did not certify every future procedure immune from review; specific evidence and statutory remedies remain relevant.

Evidence. The 7 May 2025 order clarified manufacturer-engineer diagnostic checking/certification, preservation of requested machines and a candidate-requested mock-poll display procedure within the Court's protocol.

Prelims trap. A VVPAT slip is displayed briefly and retained in the box; the voter does not take it away.

Mains use. Add public audit statistics, accessible technical explanations, custody transparency and rapid complaint resolution.

Recap. Secure device + paper audit + observable procedure + review.

SESSION 16 - ARTICLE 324 POWER: MOHINDER SINGH GILL, A.C. JOSE AND NATURAL JUSTICE

Is the field covered by Constitution, Act or Rules?

YES -> ECI obeys the law; cannot supplant it

NO -> Article 324 may fill the genuine gap

action must serve free/fair election + rest on relevant material

natural justice adjusted to urgency + reasons + judicial review

Definition. Article 324 is plenary within the election field, but its residual power operates where law is silent, not contrary to an occupied statutory field.

Answer line. Article 324 is a reservoir, not a rival legislature.

Keywords. gap-filling; supplement not supplant; occupied field; natural justice; relevant material; proportionality.

ECI-specific argument.

- **Claim:** Residual power is necessary because legislation cannot anticipate every election emergency.
- **Named evidence:** *Mohinder Singh Gill v. CEC* (1978) recognised Article 324's reservoir character; *A.C. Jose v. Sivan Pillai* (1984) held that ECI cannot override enacted rules.
- **Analysis:** Together they permit decisive action in a vacuum while preserving Parliament's Article 327 authority and the rule of law.
- **Qualification:** Election urgency can shape when and how hearing occurs, but it does not abolish fairness, reasons or review.

Evidence. *Mohinder Singh Gill* also insists that an order stands on the reasons contained in it; later affidavits cannot freely replace the original basis.

Prelims trap. "Plenary" does not mean the ECI can amend the RPA or Conduct of Elections Rules by instruction.

Mains use. Apply a four-step test: legal field, genuine gap, electoral necessity, procedural fairness.

Recap. Fill silence; obey text; record reasons.

SESSION 17 - ARTICLE 329, ELECTION PETITIONS AND THE HIGH COURT ROUTE

pre-result electoral process

|
Article 329(b) anti-interruption rule

|
result declared

|
election petition: RPA 1951 ss.80, 80A, 81, 83

|
High Court: dismiss / void election / declare another elected where conditions exist

|
Supreme Court appeal: section 116A

Definition. Article 329 protects the election timetable by channelling challenges to parliamentary and State-legislature elections into the statutory post-result petition.

Answer line. The Constitution delays ordinary judicial interruption; it does not abolish judicial remedy.

Keywords. *N.P. Ponnuswami*; election petition; forty-five days; section 100; material effect; High Court; section 116A.

ECl-specific argument.

- **Claim:** The anti-interruption rule prevents fragmented litigation from stopping a democratic timetable.
- **Named evidence:** *N.P. Ponnuswami v. Returning Officer* (1952) treated the petition as the exclusive challenge route; *Election Commission v. Ashok Kumar* (2000) allowed limited judicial action that facilitates rather than obstructs the process.
- **Analysis:** Courts protect both continuity and legality by calibrating timing and remedy.
- **Qualification:** President and Vice-President election disputes go directly to the Supreme Court under Article 71 and their special statute, not this High Court route.

Evidence. Section 100 includes disqualification, corrupt practice, improper nomination decisions, vote irregularity and material non-compliance grounds.

Prelims trap. Article 329 is not a general bar on every election-related writ at every stage and for every office.

Mains use. Structure answers as constitutional bar -> petition procedure -> void grounds -> appeal -> delay reform.

Recap. Do not derail the poll; provide a full post-result court remedy.

SESSION 18 - ELECTORAL REFORM: INDEPENDENCE, CLEAN POLITICS AND INFORMATION INTEGRITY

Reform field	Deficit	Bounded response
appointment	executive predominance and weak public reasons	plural committee, independent search, dossier time, recorded comparative reasons
removal/secretariat	EC asymmetry and staff dependence	fair inquiry, protected dissent, permanent secretariat and predictable finance
expenditure	hidden third-party/digital spending	real-time disclosure, ad libraries, audit and proportionate penalties
criminalisation	slow trials and opaque selection	special courts, truthful disclosure, party reasons, no guilt by accusation
party democracy	weak internal accountability	statutory minimums with autonomy and appeal
misinformation	deepfakes and opaque amplification	rapid provenance notices, platform transparency and speech safeguards
MCC	flexibility but inconsistent reasons	hybrid codification and public complaint ledger

Definition. Electoral reform improves the ecosystem of competition rather than granting the ECI unbounded power.

Answer line. The best reform combines institutional independence with transparent, reviewable exercise of existing authority.

Keywords. independence; accountability; criminalisation; political finance; internal democracy; misinformation; MCC debate; simultaneous elections.

ECI-specific argument.

- **Claim:** More power without clearer law and reasons may deepen contestation rather than trust.
- **Named evidence:** The appointment debate after *Anoop Baranwal*, disclosure cases, *Lily Thomas*, *Public Interest Foundation* and the 2024 EVM judgment expose different links in the trust chain.
- **Analysis:** Reform must assign the right tool to the right institution - ECI administration, legislative standards, court adjudication and party compliance.
- **Qualification:** Simultaneous elections are only a bounded cross-link here; efficiency claims must be tested against federal mandates, mid-term dissolution and accountability.

Evidence. *Abhiram Singh* addresses communal appeals; *Public Interest Foundation* addresses disclosure; neither authorises ECI to legislate new disqualifications.

Prelims trap. Delimitation Commission, SEC, High Court and government are not subordinate departments of the ECI.

Mains use. End with a sequenced package: independent entry, secure operation, transparent enforcement, quick courts and informed voters.

Recap. Trust is an ecosystem: entry rules + clean contest + auditable vote + timely remedy.

The full 32-question set below spans the complete core. Correct options rotate **A -> B -> C -> D** eight times.

BASIC MCQS / REMEDIATION

32 ORIGINAL MCQS - STRICT KEY SEQUENCE ABCD x 8

MCQ 1

Article 324 directly covers which election?

A. Vice-President B. Municipal corporation C. Gram Panchayat D. Cooperative society

Answer: A.

Option-by-option explanation

- **A:** Vice-Presidential elections are expressly inside Article 324.
- **B:** Municipal corporations fall under Article 243ZA and the SEC.
- **C:** Gram Panchayat polls fall under Article 243K and the SEC.
- **D:** A cooperative society is not one of Article 324's four election fields.

Examiner trap 1: Local-body and private-association elections are outside the ECI field.

MCQ 2

Article 325 primarily guarantees:

A. a special roll for minorities B. one general roll without exclusion or special claim only on religion, race, caste or sex
C. automatic enrolment without residence D. voting rights for non-citizens

Answer: B.

Option-by-option explanation

- **A:** Article 325 rejects identity-based special rolls rather than creating them.
- **B:** This reproduces Article 325's one-general-roll equality rule.
- **C:** Ordinary residence remains a lawful enrolment condition under the RPA 1950.
- **D:** Citizenship remains essential; Article 325 does not enfranchise non-citizens.

Examiner trap 2: One general roll does not abolish citizenship, age or residence conditions.

MCQ 3

Which statement on Article 326 is correct?

A. It covers every local election. B. It fixes voting age at twenty-one. C. It bases Lok Sabha and Assembly elections on adult suffrage, presently eighteen. D. It bars statutory disqualification.

Answer: C.

Option-by-option explanation

- **A:** Article 326 addresses Lok Sabha and Assembly adult suffrage, not every local poll.
- **B:** The 61st Amendment lowered the age from twenty-one to eighteen.
- **C:** This states the present constitutional suffrage rule accurately.
- **D:** Article 326 expressly permits constitutional or statutory disqualifications.

Examiner trap 3: Do not confuse constitutional suffrage with an unconditional individual claim regardless of law.

MCQ 4

The correct relationship between Articles 327 and 328 is:

A. States have exclusive election law power. B. ECI makes all election statutes. C. Parliament cannot legislate on State elections. D. State legislative power is subject to the Constitution and parliamentary law.

Answer: D.

Option-by-option explanation

- **A:** States do not possess an exclusive field once Parliament legislates.
- **B:** The ECI administers law; it is not the general statute-making body.
- **C:** Article 327 expressly authorises Parliament to legislate.
- **D:** Article 328's State power is constitutionally and statutorily subordinate.

Examiner trap 4: Article 324 supervision does not replace legislative competence.

MCQ 5

Panchayat and municipal election control belongs constitutionally to:

A. State Election Commissions B. the ECI C. UPSC D. the Delimitation Commission

Answer: A.

Option-by-option explanation

- **A:** Articles 243K and 243ZA vest local-body election control in SECs.
- **B:** Article 324 does not include Panchayat or municipal elections.
- **C:** UPSC recruits public servants and has no election-management mandate.
- **D:** The Delimitation Commission draws boundaries; it does not conduct local polls.

Examiner trap 5: The SEC is not an ECI regional office.

MCQ 6

For a sitting MLA disqualification question under Article 192, the Governor must obtain the opinion of:

A. Speaker B. Election Commission of India C. State Election Commission D. High Court Registrar

Answer: B.

Option-by-option explanation

- **A:** The Speaker decides Tenth Schedule matters, not an Article 192 reference.
- **B:** Article 192 requires the Governor to obtain the ECI's opinion.
- **C:** The SEC has no role in State-legislator disqualification.
- **D:** A High Court may review lawfully, but its Registrar supplies no constitutional opinion.

Examiner trap 6: Tenth Schedule defection remains with the Speaker/Chairman.

MCQ 7

In a multi-member ECI, the CEC is best described as:

A. sole final authority B. holder of a casting vote C. Chairman with equal collegial decision-making power D. a ceremonial member

Answer: C.

Option-by-option explanation

- **A:** The CEC cannot unilaterally decide Commission business.
- **B:** Neither Article 324 nor section 18 creates a casting vote.
- **C:** Chairmanship coexists with equal voting and majority decision.
- **D:** The CEC has real chair and security functions, so the office is not ceremonial.

Examiner trap 7: Removal privilege must not be mistaken for decisional supremacy.

MCQ 8

A Regional Commissioner under Article 324 is appointed:

A. by a Governor without consultation B. by Parliament C. by the CEC personally D. by the President after consulting the ECI

Answer: D.

Option-by-option explanation

- **A:** A Governor does not appoint an Article 324 Regional Commissioner.
- **B:** Parliament supplies law but does not make this appointment.
- **C:** The CEC is consulted institutionally through the ECI; the CEC does not appoint personally.
- **D:** Article 324(4) gives the President this consultation-based appointing power.

Examiner trap 8: A Regional Commissioner is not the State Election Commissioner.

MCQ 9

Anoop Baranwal (2023) created which arrangement?

A. PM, Opposition leader and CJI until Parliament made a law B. a permanent constitutional CJI seat C. direct appointment by Supreme Court D. selection by Rajya Sabha

Answer: A.

Option-by-option explanation

- **A:** This is the Court's exact temporary PM-Opposition-CJI arrangement.
- **B:** CJI membership was expressly limited until parliamentary legislation.
- **C:** The Court did not transfer appointment power to itself.
- **D:** Rajya Sabha was not made the selecting institution.

Examiner trap 9: The decision did not prohibit Parliament from enacting a different committee.

MCQ 10

The Search Committee under section 6 of Act 49 of 2023 is headed by:

A. Cabinet Secretary B. Minister of Law and Justice C. Chief Justice of India D. CEC

Answer: B.

Option-by-option explanation

- **A:** The Cabinet Secretary does not head the enacted section 6 committee.
- **B:** Section 6 expressly names the Minister of Law and Justice.
- **C:** The CJI is absent from the statutory Search Committee.
- **D:** The CEC is the office being searched for, not the search chair.

Examiner trap 10: Bill-stage or coaching summaries naming the Cabinet Secretary are unsafe.

MCQ 11

The current Selection Committee consists of:

A. President, PM and CJI B. PM, CEC and LoP C. PM, LoP/largest opposition leader and PM-nominated Union Cabinet Minister D. Law Minister, Cabinet Secretary and CJI

Answer: C.

Option-by-option explanation

- **A:** The President appoints after recommendation but is not one of the section 7 selectors.
- **B:** The CEC is not a Selection Committee member.

- **C:** This is the enacted three-member Selection Committee.
- **D:** The Law Minister heads search, while the CJI is outside the enacted process.

Examiner trap 11: Search and selection bodies have different membership and functions.

MCQ 12

The current statutory tenure rule is:

A. five years without age cap B. six years fixed in Article 324 C. until President's pleasure D. six years or age sixty-five, whichever is earlier, with no reappointment

Answer: D.

Option-by-option explanation

- **A:** The Act does not prescribe a five-year term.
- **B:** Article 324 itself does not fix six years.
- **C:** CEC and ECs do not serve at ordinary presidential pleasure.
- **D:** Section 9 combines six years, age sixty-five and no reappointment.

Examiner trap 12: The six-year rule is statutory, not constitutional text.

MCQ 13

Section 10 of the enacted 2023 Act fixes salary equal to:

A. a Judge of the Supreme Court B. the Cabinet Secretary C. a High Court Chief Justice D. the Attorney General

Answer: A.

Option-by-option explanation

- **A:** Section 10 of the enacted Gazette text uses Supreme Court judge salary.
- **B:** Cabinet Secretary parity appeared in Bill-stage discussion, not enacted section 10.
- **C:** The Act does not use High Court Chief Justice salary.
- **D:** The Attorney General's remuneration is not the statutory comparator.

Examiner trap 13: Do not repeat the Cabinet-Secretary proposal associated with an earlier Bill stage.

MCQ 14

Which removal statement is correct?

A. Every EC needs parliamentary impeachment. B. Other ECs are removable only on the CEC's recommendation. C. The CEC serves at pleasure. D. Regional Commissioners have no protection.

Answer: B.

Option-by-option explanation

- **A:** Only the CEC uses the Supreme-Court-judge removal route.
- **B:** Other ECs need the CEC's recommendation before presidential removal.
- **C:** Article 324 rejects ordinary pleasure removal of the CEC.
- **D:** Regional Commissioners share the CEC-recommendation protection.

Examiner trap 14: Equal voting power does not equal identical removal route.

MCQ 15

Article 324(6) concerns:

A. party registration B. election petitions C. staff made available by President/Governor when ECI requests D. salary charged on the Consolidated Fund

Answer: C.

Option-by-option explanation

- **A:** Party registration is governed by RPA 1951 section 29A.
- **B:** Election petitions are governed by Article 329 and the RPA 1951.
- **C:** Article 324(6) is the staff-supply clause.
- **D:** No blanket charged-expenditure rule appears in clause (6).

Examiner trap 15: It does not itself create a separate permanent election civil service.

MCQ 16

The central holding of *T.N. Seshan* (1995) was that:

A. ECI may override statute B. CEC alone may decide C. other ECs are unconstitutional D. the multi-member Commission and collegial equality are valid

Answer: D.

Option-by-option explanation

- **A:** A.C. Jose, not T.N. Seshan, supplies the no-override rule.
- **B:** The judgment rejected CEC decisional supremacy.
- **C:** The case upheld rather than invalidated other ECs.
- **D:** The Court validated the multi-member, majority-based institutional design.

Examiner trap 16: CEC chairmanship and removal protection survived the equality holding.

MCQ 17

The RPA 1950 chiefly supplies:

A. allocation/constituency and electoral-roll framework B. the MCC C. Supreme Court election appeals only D. party manifestos

Answer: A.

Option-by-option explanation

- **A:** The RPA 1950 supplies allocation, constituency and roll architecture.
- **B:** The MCC is an ECI code, not the principal subject of the 1950 Act.
- **C:** Supreme Court appeals are part of the RPA 1951 dispute chain.
- **D:** Manifesto regulation is not the defining field of the 1950 Act.

Examiner trap 17: Conduct, corrupt practices and petitions are principally in the 1951 Act.

MCQ 18

Four electoral-roll qualifying dates are:

A. monthly B. 1 January, 1 April, 1 July and 1 October C. only 1 January D. dates fixed separately by every candidate

Answer: B.

Option-by-option explanation

- **A:** The statute does not open a qualifying date every month.
- **B:** The four dates are 1 January, 1 April, 1 July and 1 October.
- **C:** The former single-date system has been replaced.

- **D:** Qualifying dates are statutory national dates, not candidate choices.

Examiner trap 18: A qualifying date does not remove other eligibility requirements.

MCQ 19

When constituted, ordinary delimitation is performed by:

A. ECI alone B. Parliament's secretariat C. the statutory Delimitation Commission, with ECI participation as law provides D. State Election Commission

Answer: C.

Option-by-option explanation

- **A:** The ECI is not the sole delimiting body.
- **B:** A parliamentary secretariat does not adjudicate constituency boundaries.
- **C:** A statutory Delimitation Commission performs the exercise with ECI participation as provided.
- **D:** The SEC's field is local-body election administration.

Examiner trap 19: ECI assistance or ex officio membership is not sole ownership.

MCQ 20

The RPA 1951 principally covers:

A. only rolls B. only presidential elections C. only party registration D. conduct, candidates, disqualifications, corrupt practices, expenses and petitions

Answer: D.

Option-by-option explanation

- **A:** Electoral rolls are principally the RPA 1950 field.
- **B:** Presidential elections have a separate statute and are not the Act's only subject.
- **C:** Section 29A is only one component of the broader 1951 Act.
- **D:** This option states the Act's full operational range.

Examiner trap 20: Keep the 1950 infrastructure/1951 conduct distinction.

MCQ 21

Political-party registration is under:

A. RPA 1951 section 29A B. Article 329 C. RPA 1950 section 19 D. Tenth Schedule paragraph 6

Answer: A.

Option-by-option explanation

- **A:** Section 29A of the RPA 1951 is the registration provision.
- **B:** Article 329 concerns electoral judicial intervention and petitions.
- **C:** RPA 1950 section 19 concerns voter registration qualification.
- **D:** Tenth Schedule paragraph 6 concerns defection adjudication.

Examiner trap 21: Registration does not guarantee recognition or a reserved symbol.

MCQ 22

The *Institute of Social Welfare* (2002) rule is that ECI:

A. may dissolve any party B. has no general deregistration power, subject to narrow exceptions C. must deregister after every guideline breach D. cannot register parties

Answer: B.

Option-by-option explanation

- **A:** ECI cannot dissolve any party by unenumerated discretion.
- **B:** The judgment denies a general cancellation power while preserving narrow exceptions.
- **C:** A guideline breach alone does not create statutory deregistration authority.
- **D:** Section 29A expressly authorises registration.

Examiner trap 22: Derecognition and deregistration are different consequences.

MCQ 23

A recognised-party split symbol dispute is principally decided under:

A. MCC B. Article 103 C. paragraph 15 of the Symbols Order, 1968 D. section 151A

Answer: C.

Option-by-option explanation

- **A:** The MCC does not decide recognised-party split symbols.
- **B:** Article 103 concerns MP disqualification questions.
- **C:** Paragraph 15 of the Symbols Order supplies the rival-group route.
- **D:** Section 151A concerns the timing of by-elections.

Examiner trap 23: The decision concerns electoral identity, not every intra-party civil dispute.

MCQ 24

The MCC is best described as:

A. a constitutional amendment B. a complete criminal code C. a mere voluntary pamphlet with no ECI role D. a non-statutory code enforced through Article 324 and existing law

Answer: D.

Option-by-option explanation

- **A:** The MCC was not enacted as a constitutional amendment.
- **B:** It does not itself codify every campaign crime and penalty.
- **C:** It has substantial ECI-backed preventive operation.
- **D:** This accurately combines its non-statutory character and legal overlap.

Examiner trap 24: A non-statutory breach and a statutory offence must be analysed separately.

MCQ 25

Candidate affidavit disclosure is principally linked to:

A. the voter's Article 19(1)(a) right to information B. a presumption of guilt C. automatic disqualification for every pending case D. SEC supervision

Answer: A.

Option-by-option explanation

- **A:** ADR and PUCL ground material disclosure in the voter's speech right.
- **B:** A pending case or affidavit does not reverse the presumption of innocence.
- **C:** The Court did not impose automatic disqualification for every pending case.

- **D:** Candidate affidavits are administered in ECI elections, not by SECs generally.

Examiner trap 25: Disclosure is not conviction.

MCQ 26

Public Interest Foundation requires parties and candidates to:

A. conceal acquittals B. publicise criminal antecedents and party selection reasons as directed C. withdraw every accused candidate D. seek CEC permission for prosecution

Answer: B.

Option-by-option explanation

- **A:** The disclosure directions do not require concealing acquittals.
- **B:** Publicity and reason-giving are the central judicial directions.
- **C:** The Court stopped short of a universal withdrawal rule.
- **D:** Criminal prosecution does not depend on personal CEC permission.

Examiner trap 26: The Court did not enact a universal pre-trial disqualification.

MCQ 27

Which expenditure statement is correct?

A. Party and candidate ceilings are identical. B. Paid news can never affect accounts. C. Candidate accounts and ceilings are statutory; party expenditure is a distinct category. D. ECI may invent any financial offence.

Answer: C.

Option-by-option explanation

- **A:** Candidate and party expenditure are legally distinct categories.
- **B:** Paid news may be attributed to candidate expenditure on proof.
- **C:** This correctly states the statutory candidate-account boundary.
- **D:** Article 324 cannot manufacture an undefined financial offence.

Examiner trap 27: Always identify payer, candidate authorisation and legal consequence.

MCQ 28

Paid news is handled most accurately as:

A. automatic treason B. only an ethical concern C. proof of candidate guilt without hearing D. evidence-based media monitoring, possible expense attribution and applicable legal action

Answer: D.

Option-by-option explanation

- **A:** Paid news is not classified automatically as treason.
- **B:** It has legal and expenditure implications beyond ethics.
- **C:** A hearing and evidence remain necessary before adverse attribution.
- **D:** This states the evidence-based monitoring and legal-route approach.

Examiner trap 28: Suspicion alone is not a statutory finding.

MCQ 29

The constitutional value added by VVPAT is:

A. a voter-visible paper audit trail retained for verification B. a take-home receipt C. automatic full recount D. replacement of EVMs with postal ballots

Answer: A.

Option-by-option explanation

- **A:** VVPAT displays and preserves a paper audit record.
- **B:** The voter never receives the slip as a take-home receipt.
- **C:** Existing law does not require an automatic full manual recount.
- **D:** VVPAT supplements rather than converts EVMs into postal ballots.

Examiner trap 29: The slip remains sealed in the machine.

MCQ 30

The 26 April 2024 EVM-VVPAT judgment:

A. ordered paper ballots B. rejected universal 100% counting while adding limited safeguards C. abolished VVPAT D. barred technical verification

Answer: B.

Option-by-option explanation

- **A:** The Court rejected a return to paper ballots.
- **B:** It rejected universal counting but added preservation and verification safeguards.
- **C:** The judgment retained rather than abolished VVPAT.
- **D:** It created a limited technical-verification route instead of barring it.

Examiner trap 30: Do not convert rejection of one remedy into a declaration of infallibility.

MCQ 31

Section 151A ordinarily requires a by-election within:

A. three months always B. one year always C. six months, subject to statutory exceptions D. the next general election only

Answer: C.

Option-by-option explanation

- **A:** Section 151A does not use an unconditional three-month rule.
- **B:** One year relates to the remaining-term exception, not the ordinary deadline.
- **C:** The ordinary deadline is six months with two statutory qualifications.
- **D:** The vacancy is not automatically postponed to the next general election.

Examiner trap 31: The exception certification involves ECI consultation with the Central Government.

MCQ 32

Article 329(b) means:

A. all election action is immune forever B. only ECI can try petitions C. High Courts cannot hear election petitions D. legislative elections are ordinarily challenged by post-result election petition under law

Answer: D.

Option-by-option explanation

- **A:** Article 329 does not confer permanent immunity.
- **B:** High Courts, not the ECI, try legislative election petitions.

- **C:** Sections 80 and 80A expressly give High Courts the petition role.
- **D:** This accurately describes the post-result statutory channel.

Examiner trap 32: President/Vice-President disputes follow Article 71, not the High Court petition route.

PYQS AND ANSWER PRACTICE

PYQ-P1 - UPSC PRELIMS 2021 GS-I Q80

Official-paper wording held locally

Consider the following statements:

1. In India, there is no law restricting the candidates from contesting in one Lok Sabha election from three constituencies.
2. In 1991 Lok Sabha Election, Shri Devi Lal contested from three Lok Sabha constituencies.
3. As per the existing rules, if a candidate contests in one Lok Sabha election from many constituencies, his/her party should bear the cost of bye-elections to the constituencies vacated by him/her in the event of him/her winning in all the constituencies.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. 1 and 3 D. 2 and 3

Inferred answer - not an official local key: B.

Explanation. Section 33(7) presently limits candidature to two constituencies in the same general election, so statement 1 is false. The routed historical fact supports statement 2. Cost recovery is a reform proposal, not the existing rule in statement 3. Because a readable official 2021 key is not held locally, the answer remains explicitly inferential.

PYQ-P2 - UPSC PRELIMS 2024 GS-I Q71

Official Set A wording and key held locally

How many Delimitation Commissions have been constituted by the Government of India till December 2023?

A. One B. Two C. Three D. Four

Official local Set A key: D.

Explanation. Four statutory exercises followed the 1952, 1962, 1972 and 2002 Delimitation laws. This fact does not make ECI the sole delimiting authority.

PYQ-M1 - UPSC 2018 GS-II Q1

Official-paper wording held locally: "In the light of recent controversy regarding the use of Electronic Voting Machines (EVM), what are the challenges before the Election Commission of India to ensure the trustworthiness of elections in India?" (10 marks, 150 words)

Model answer. Trustworthiness is an ecosystem, not only a machine question. First, roll accuracy requires inclusion, notice before deletion and accessible correction. Second, the ECI must ensure neutral staff, secure custody and transparent counting. Third, money power, paid news, criminal antecedents and misinformation can make a technically secure poll substantively unfair. Fourth, technology needs visible audit. *Subramanian Swamy v. ECI* (2013) made VVPAT a confidence safeguard; *ADR v. ECI* (2024) retained EVM-VVPAT, rejected universal counting and added preservation and candidate-requested verification measures. Fifth, MCC complaints require prompt, comparable reasons. Yet unsupported fraud allegations should not be amplified. The answer is auditable procedure: publish aggregate verification outcomes, strengthen observer and candidate access, explain safeguards in plain language and provide swift legal remedies. The ECI earns trust not by demanding faith but by making each link - roll, campaign, poll, count and complaint - independently verifiable.

PYQ-M2 - UPSC 2019 GS-II Q11

Official-paper wording held locally: "On what grounds a people's representative can be disqualified under the Representation of Peoples Act, 1951? Also mention the remedies available to such person against his disqualification." (15 marks, 250 words)

Model answer. The RPA 1951 operationalises the "law made by Parliament" ground in Articles 102 and 191. Its principal disqualifications include conviction for specified offences under section 8; corrupt practices under section 8A; dismissal for corruption or disloyalty under section 9; subsisting government contracts under section 9A; office under a government company under section 10; and failure to lodge election-expense accounts under section 10A. *Lily Thomas v. Union of India* (2013) invalidated section 8(4), so a sitting legislator no longer receives an automatic grace period after a qualifying conviction.

Remedies depend on the source. An appellate stay of conviction, not merely suspension of sentence, can halt conviction-based consequences. Section 11 empowers the ECI to remove or reduce specified disqualification where the statute permits. A sitting-member question under Articles 103 or 192 goes to the President or Governor after obtaining the ECI's opinion. An election-petition judgment is appealable to the Supreme Court under section 116A. Defection is different: the Tenth Schedule assigns it to the Speaker or Chairman.

The system therefore combines strict grounds with layered review; its weakness is delay. Time-bound courts and reasoned ECI opinions should improve remedy without diluting proof.

PYQ-M3 - UPSC 2020 GS-II Q1

Official-paper wording held locally: "There is a need for simplification of procedure for disqualification of persons found guilty of corrupt practices under the Representation of Peoples Act. Comment." (10 marks, 150 words)

Model answer. Simplification is justified because the present chain can outlast the elected term, but the evidentiary threshold must remain strict. A section 123 corrupt practice is proved in a High Court election petition; section 99 may name guilty persons; section 8A disqualification then proceeds through the President acting on the ECI's opinion. Multiple stages protect fairness but reduce deterrence when hearings and references are delayed. Article 324 cannot authorise the ECI to bypass the petition and summarily declare guilt. Reform should therefore simplify time, service and coordination: dedicated election benches, digital filing and evidence, a published timetable for the court-ECI-President sequence, and reasoned decisions. Because the consequence can exclude a citizen from electoral participation for years, natural justice and appellate review remain essential. Simplify procedure, not proof.

PYQ-M4 - UPSC 2022 GS-II Q11

Official-paper wording held locally: "Discuss the procedures to decide the disputes arising out of the election of a Member of the Parliament or State Legislature under the Representation of the People Act, 1951. What are the grounds on which the election of any returned candidate may be declared void? What remedy is available to the aggrieved party against the decision? Refer to the case laws." (15 marks, 250 words)

Model answer. Article 329(b) channels a challenge to a parliamentary or State-legislature election into the RPA election-petition route. *N.P. Ponnuswami v. Returning Officer* (1952) explains the anti-interruption principle: ordinary litigation should not derail an election midway.

Under sections 80 and 80A, an election is questioned only by petition tried by the High Court. Section 81 generally requires presentation within forty-five days; section 83 requires material facts and full particulars of corrupt practice. The statutory trial follows with necessary parties and strict pleading requirements.

Section 100 permits an election to be declared void for lack of qualification or disqualification; corrupt practice by the returned candidate or election agent; improper rejection of nomination; and material effect caused by improper acceptance, corrupt practice by others, improper reception/refusal/rejection of votes, or non-compliance with the Constitution, Act, Rules or lawful orders. The High Court may dismiss, void the election or, where statutory conditions are met, declare another candidate elected. Section 116A provides appeal to the Supreme Court.

Indira Nehru Gandhi v. Raj Narain (1975) protected free and fair elections and judicial review. The design rightly preserves the poll timetable, but time-bound adjudication is necessary so victory does not exhaust the remedy.

PYQ-M5 - UPSC 2022 GS-II Q15

Exact official-paper wording held locally: "Discuss the role of the Election Commission of India in the light of the evolution of the Model Code of Conduct." (15 marks, 250 words)

Model answer. The MCC is a consensus-based, non-statutory code through which the ECI converts Article 324 supervision into rapid campaign-time standards. ECI material traces its origin to the 1960 Kerala election and its national evolution through the 1968-69 period and later party consultations.

From schedule announcement until completion, the ECI regulates meetings, processions, polling-day conduct, manifestos and misuse of official machinery; receives complaints; seeks responses; censures or restrains campaigners; and orders administrative correction. Its strength is preventive speed: transfers, advertising restraint or a campaign direction can remove an unfair advantage before ordinary litigation concludes.

The MCC is not itself a complete penal code. Bribery, undue influence, communal appeals and other conduct may separately attract the RPA 1951, BNS or another statute. *Abhiram Singh v. C.D. Commachen* (2017), for example, interprets section 123(3)'s corrupt-practice prohibition, not a free-standing MCC offence.

Weaknesses are inconsistent response time, limited direct sanctions and insufficient reasons. Full criminal codification may sacrifice speed. A hybrid reform should retain flexible preventive rules, codify serious misuse of state resources, and publish complaint timelines, reasons and statutory referrals. The ECI's legitimacy requires both immediacy and equal treatment.

PYQ-M6 - UPSC 2024 GS-II Q1

Exact wording preserved in the local owner: "Examine the need for electoral reforms as suggested by various committees with particular reference to 'one nation - one election' principle." (10 marks, 150 words)

Model answer. Electoral reform is needed in political finance, criminalisation, roll integrity, ECI independence and dispute delay; simultaneous elections are one contested proposal within that larger agenda. Supporters cite lower recurring administrative cost, fewer repeated MCC periods and policy continuity. Yet synchronisation must address Articles 83 and 172, mid-term dissolution, ECI capacity and the federal risk that State mandates become absorbed by a national campaign. Committee recommendations cannot replace constitutional consent. Priority should first go to transparent donations and digital ads, time-bound criminal and election trials, accurate rolls and a credible appointment process. Simultaneous elections should proceed only with a workable remainder-term or constructive-confidence design, federal consultation and judicial safeguards. Efficiency is valuable, but it cannot override representative accountability.

PYQ-M7 - UPSC 2025 GS-II Q1

Official-paper wording held locally: "Discuss the 'corrupt practices' for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/or their associates, disproportionate to their known sources of income, would constitute 'undue influence' and consequently a corrupt practice." (10 marks, 150 words)

Model answer. Section 123 treats bribery, undue influence, specified identity or religious appeals, promotion of enmity, false candidate statements, prohibited transport, excess expenditure and prohibited public-servant assistance as corrupt practices. Undue influence under section 123(2) targets direct or indirect interference with the free exercise of an electoral right. Disproportionate growth in a legislator's or associate's assets may raise disclosure, tax or anti-corruption concerns, but without an electoral nexus showing coercion or interference with voter freedom it is not automatically undue influence. *ADR* and *PUCI* instead support full candidate-information disclosure and verification. If illicit assets finance a proven inducement, bribery or another corrupt practice may arise on its own elements. The correct response is rigorous disclosure and investigation, not stretching a defined electoral wrong beyond its text.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

ORIGINAL MAINS 1 - Explain why Article 324 is a reservoir of power but not a source of authority contrary to election law. (10 marks, 150 words)

Model answer. Article 324 grants the ECI plenary superintendence, direction and control so that unforeseen gaps do not paralyse a free and fair election. In *Mohinder Singh Gill v. CEC* (1978), the Supreme Court treated it as a reservoir where legislation is silent. This permits urgent, election-specific safeguards based on relevant material. However, Parliament possesses election-law competence under Article 327. *A.C. Jose v. Sivan Pillai* (1984) therefore held that ECI may supplement, not supplant, the Act and Rules. The Commission also owes context-sensitive natural justice and recorded reasons. Thus, Article 324 is decisive in a genuine legal vacuum but obedient where the field is occupied. Its legitimacy lies in combining operational flexibility with the rule of law.

ORIGINAL MAINS 2 - Distinguish the constitutional position of the CEC from that of the other Election Commissioners. (10 marks, 150 words)

Model answer. The CEC and other ECs are functionally equal members of a multi-member Commission. *T.N. Seshan v. Union of India* (1995) upheld collegial equality; section 18 of Act 49 of 2023 seeks unanimity and otherwise uses majority opinion. The CEC is Chairman, not a unilateral superior. Security, however, is asymmetric. The CEC can be removed only in the same manner and on the same grounds as a Supreme Court judge, and Article 324 protects the CEC against disadvantageous variation of service conditions. Other ECs have the same statutory salary and term framework but may be removed by the President only on the CEC's recommendation. Thus, equality of vote coexists with unequal tenure protection. Reform should protect collegial dissent without making serious misconduct practically unaccountable.

ORIGINAL MAINS 3 - Critically examine the appointment architecture under Act 49 of 2023. (15 marks, 250 words)

Model answer. Article 324(2) expressly permits Parliament to regulate appointment. Act 49 of 2023 therefore validly replaces the earlier executive convention and the temporary *Anoop Baranwal* arrangement.

The design has four stages. Section 5 limits eligibility to Secretary-equivalent persons of integrity with election-management knowledge and experience. Section 6 creates a Law-Minister-led Search Committee with two Secretary-rank members and a panel of five. Section 7 establishes the Prime Minister, Lok Sabha Opposition leader and a PM-nominated Union Cabinet Minister as the Selection Committee. Section 8 allows transparent self-regulated procedure and consideration beyond the panel; the President appoints by warrant.

Its strengths are a statutory process, express qualifications and Opposition participation. Its weaknesses are executive control of the search, a two-to-one executive majority, an outside-panel power and no express duty to publish comparative reasons. These features may reduce perceived independence even if individual appointments are meritorious.

Anoop Baranwal did not permanently require the CJI; it operated only until Parliament legislated. As of 7 September 2026, the Act operates and no official final merits judgment or stay was located; the 22 March 2024 order refused interim interference.

Reform should publish criteria, give members adequate dossiers, record comparative reasons, strengthen search independence and protect meaningful Opposition participation. Legality is established by statute; legitimacy depends on credible insulation from the incumbent executive.

ORIGINAL MAINS 4 - The Model Code of Conduct gains from flexibility but loses legitimacy through opacity. Discuss. (15 marks, 250 words)

Model answer. The MCC is a non-statutory, consensus-based code operating through Article 324 from schedule announcement until completion. Its flexibility is an institutional strength. The ECI can rapidly stop misuse of official machinery, restrain campaigning, seek responses, transfer officers and refer independently illegal conduct without awaiting a full criminal trial. Such preventive speed protects a level playing field when delayed correction would be meaningless.

Yet flexibility creates legitimacy risks. Direct sanctions are limited, similar complaints may receive different timelines, short orders may not reveal the standard applied, and MCC language can blur with statutory offences. A code cannot itself create crimes or disqualifications. Bribery, communal appeals and other conduct must satisfy the RPA, BNS or another applicable law. *Abhiram Singh* demonstrates that statutory corrupt-practice adjudication remains judicial.

Full codification may replace swift prevention with slow litigation. A hybrid is preferable: retain flexible campaign etiquette; legislate clear sanctions for serious misuse of government resources and repeated non-compliance; distinguish preventive from punitive orders; provide a short hearing where feasible; and publish a searchable complaint, timeline, reason and referral ledger.

The MCC should remain quick, but not inscrutable. Transparent consistency converts moral authority into durable institutional trust.

ORIGINAL MAINS 5 - Evaluate the ECI as an electoral-trust ecosystem rather than merely an election-day manager. (20 marks, 250 words)

Model answer. Article 324 makes the ECI responsible for the complete conditions of electoral choice, not only polling day. Trust begins with inclusive, accurate rolls under the RPA 1950. It continues through neutral staff under Article 324(6), lawful nominations, candidate disclosure after *ADR/PUCL*, expenditure and paid-news monitoring, MCC enforcement and secure EVM-VVPAT custody. It ends with transparent counting, reasoned corrective orders and the High Court election-petition remedy under Article 329 and the RPA 1951.

This ecosystem explains why machine security alone is insufficient. *Subramanian Swamy* and the 2024 *ADR v. ECI* judgment strengthened verifiability, but a voter excluded from the roll or exposed to hidden money power remains disenfranchised in substance. Similarly, broad Article 324 authority cannot replace law: *Mohinder Singh Gill* permits gap-filling, while *A.C. Jose* bars statutory contradiction.

Institutional independence also has multiple links - appointment, removal, collegiality, secretariat, finance and transparent reasons. Act 49 of 2023 creates a lawful appointment process but leaves an executive-dominance debate; Article 324(6) supplies staff without creating an autonomous cadre.

Reform must therefore be sequenced: independent search and reasoned selection; permanent secretariat and predictable finance; deletion safeguards and accessible roll appeals; real-time political-finance and digital-ad disclosure; comparable MCC decisions; audited technology; and time-bound election courts. The ECI earns authority when every stage is lawful, observable and correctable.

ORIGINAL MAINS 6 - Propose a balanced reform programme for political parties, criminalisation and campaign information without granting unbounded power to the ECI. (20 marks, 250 words)

Model answer. Reform must respect the division between legislation, ECI administration, party autonomy and judicial adjudication.

First, Parliament should strengthen party transparency: periodic audited accounts, beneficial-donor disclosure, digital-ad libraries, minimum internal-election and membership rules, and a narrowly drafted deregistration regime with notice and appeal. *Institute of Social Welfare* shows why ECI cannot invent a general cancellation power under section 29A.

Second, criminalisation requires information and speed rather than guilt by accusation. *ADR/PUCL* support affidavits; *Public Interest Foundation* requires prominent publicity and party reasons; *Lily Thomas* ensures immediate qualifying conviction consequences. Dedicated courts and sanctions for false disclosure should complement protection against politically motivated cases.

Third, campaign information needs real-time expenditure reporting, third-party spending rules, paid-news attribution on evidence, platform ad transparency and rapid deepfake provenance notices. ECI should administer these standards, but speech restrictions and offences need clear law.

Fourth, MCC reform should be hybrid: retain preventive flexibility, codify serious misuse of official machinery, and publish complaint timelines and reasons. Symbol disputes should remain under the Symbols Order with reasoned paragraph 15 analysis, not become general control of party property or ideology.

Finally, oversight must be reciprocal: a more independent ECI requires transparent selection, protected staff, published enforcement standards and timely judicial review. The objective is accountable electoral competition, not an omnipotent regulator.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

ADVANCED 1 - APPOINTMENT DESIGN BEYOND A BINARY CJI-DEBATE

eligible pool -> independent search -> plural selection -> recorded reasons
-> President's warrant -> parliamentary/public accountability

Definition. Appointment design is the institutional method used to insulate selection from partisan control while retaining democratic accountability.

Answer line. CJI membership is one design option; the constitutional test is credible independence across search, deliberation and reasons.

Keywords. independent search; plural selection; conflict rule; dossier time; recorded reasons.

ECI-specific argument. Claim: appointment legitimacy depends on the whole funnel. **Named evidence:** Act 49 of 2023 combines an executive-led search, Opposition participation and an outside-panel power. **Analysis:** a lawful process can still produce perceived dependence if one actor controls the shortlist and voting majority. **Qualification:** judicial membership is not the only constitutionally permissible safeguard.

Evidence. *Anoop Baranwal* used a CJI-inclusive arrangement only until Parliament legislated.

Prelims trap. A plural committee is not automatically non-executive or independent.

Mains use. Test breadth of pool, conflicts, dossier access, comparative reasons and dissent.

Recap. Institutional incentives matter more than one famous officeholder on the committee.

ADVANCED 2 - ROLL REVISION, CITIZENSHIP AND EXCLUSION RISK

electoral eligibility inquiry
!=
final citizenship adjudication

Definition. Roll-revision proportionality balances accurate citizenship-based enrolment with protection against wrongful exclusion.

Answer line. An electoral eligibility inquiry may protect roll purity, but it cannot become a parallel citizenship court.

Keywords. limited inquiry; notice; exclusion error; competent authority; accessible proof.

ECI-specific argument. Claim: roll revision requires asymmetric-error safeguards. **Named evidence:** 2026 INSC 564 permits limited electoral inquiry but reserves final citizenship adjudication to the competent authority. **Analysis:** wrongful inclusion affects roll accuracy, while wrongful exclusion immediately removes political voice. **Qualification:** procedural protection does not prevent lawful deletion after evidence and hearing.

Evidence. Aadhaar identifies a person but is not proof of citizenship.

Prelims trap. An ECI roll decision is not a universal legal declaration that a person is not an Indian citizen.

Mains use. Recommend notice, reasoned orders, correction windows, public deletion data and assisted documentation.

Recap. Verify eligibility without converting administration into final status adjudication.

ADVANCED 3 - POLITICAL PARTIES AS PUBLIC ACTORS AND PRIVATE ASSOCIATIONS

association autonomy <---- balance ----> public electoral function

Definition. Political parties are private associations performing indispensable public electoral functions.

Answer line. Public consequences justify transparency standards, but association autonomy bars unlimited ECI management.

Keywords. internal democracy; association autonomy; public function; proportional regulation; appeal.

ECI-specific argument. Claim: party regulation must be express and proportionate. **Named evidence:** section 29A authorises registration, while *Institute of Social Welfare* rejects a general implied deregistration power. **Analysis:** disclosure and minimum democratic standards protect voters without making ECI the party's permanent administrator. **Qualification:** serious cancellation requires legislated grounds, hearing and appeal.

Evidence. Symbols Order recognition regulates electoral status separately from registration.

Prelims trap. A political party is not a constitutional organ merely because it contests elections.

Mains use. Propose periodic internal elections, membership rules, audited accounts and independent dispute resolution.

Recap. Regulate the public electoral function without extinguishing lawful association.

ADVANCED 4 - MCC CODIFICATION OPTIONS

Model	Gain	Risk
fully non-statutory	speed and flexibility	uneven reasons and weak direct sanctions
full penal code	certainty	litigation delay and over-criminalisation
hybrid	codify serious repeat fields; retain preventive code	boundary drafting remains difficult

Definition. MCC codification asks which campaign standards should become statutory while preserving rapid preventive administration.

Answer line. Codify serious and repetitive abuse, not every campaign etiquette rule.

Keywords. hybrid model; preventive restraint; punitive finding; reasoned order; complaint ledger.

ECI-specific argument. Claim: hybrid codification best combines speed and certainty. **Named evidence:** current MCC action relies on Article 324, while bribery and communal appeals already use statutory routes. **Analysis:** selected sanctions can deter misuse of official machinery without forcing every complaint into criminal litigation. **Qualification:** vague penal drafting may chill speech and slow immediate correction.

Evidence. MCC and section 123 can apply to related conduct but remain legally distinct.

Prelims trap. Statutory overlap does not transform the whole MCC into an Act.

Mains use. Separate preventive orders, statutory referrals, hearings and publication duties.

Recap. Preserve rapid correction; add law and reasons where coercive consequences are serious.

ADVANCED 5 - AN ELECTORAL-TRUST AUDIT

INPUTS	PROCESS	OUTPUT	REMEDY
appointments	-> neutral staff	-> auditable count	-> reasoned order/court
rolls	-> fair campaign	-> transparent result	-> timely correction

Definition. An electoral-trust audit tests every institutional input, process, output and remedy.

Answer line. Trust fails at the weakest link, whether appointment, roll, campaign, machine, order or court delay.

Keywords. ecosystem; input; process; audit; remedy; reciprocal accountability.

ECI-specific argument. Claim: ECI performance cannot be judged by polling-day security alone. **Named evidence:** disclosure cases, MCC practice, VVPAT judgments and Article 329 petitions regulate different stages. **Analysis:** an accurate machine cannot cure an excluded voter or hidden expenditure, while a good roll cannot cure an unauditable

count. **Qualification:** ecosystem analysis must still identify the exact legal owner of each failure.

Evidence. ECI, SEC, Delimitation Commission, government and courts perform distinct functions.

Prelims trap. Electoral accountability does not mean executive control of the Commission.

Mains use. Ask six questions: who appoints, who staffs, what is disclosed, which rule applies, what reasons exist, and what remedy is timely.

Recap. Independence and accountability are complements when both are legally structured.

CONSOLIDATED REGISTER NOTES

CONSTITUTIONAL SPINE AND INSTITUTIONAL BOUNDARIES

- Article 324: ECI controls rolls and elections to Parliament, State legislatures, President and Vice-President.
- Article 325: one general roll; no exclusion or special claim only on religion, race, caste or sex.
- Article 326: adult suffrage for Lok Sabha/Assemblies; 61st Amendment Act, 1988 lowered age from 21 to 18.
- Articles 327-328: Parliament legislates; State field is subordinate to parliamentary law.
- Article 329: anti-interruption design plus election-petition remedy; not total immunity.
- Articles 103/192: President/Governor decides specified sitting-member disqualification after ECI opinion.
- Articles 243K/243ZA: SEC, not ECI, controls Panchayat and municipal polls.

COMPOSITION, APPOINTMENT AND SECURITY

- Single-member from 1950; temporary multi-member 1989-90; three-member continuously from October 1993.
- *T.N. Seshan* (1995): multi-member Commission valid; CEC chairs, members decide collegially.
- *Anoop Baranwal* (2023): PM + Opposition leader + CJI only until Parliament enacted law.
- Act 49 of 2023 commenced 2 January 2024 and repealed the 1991 Act.
- Search Committee: Law Minister + two Secretary-rank-or-above members -> five names.
- Selection Committee: PM + LoP/largest opposition leader + PM-nominated Union Cabinet Minister.
- Eligibility: Secretary-equivalent rank, integrity, election-management knowledge/experience.
- Term: six years or 65; no reappointment; aggregate six-year cap if EC becomes CEC.
- Salary: equal to Supreme Court judge under enacted section 10.
- CEC removal: like Supreme Court judge; EC/Regional Commissioner: President only on CEC recommendation.
- Article 324 protects CEC service conditions from disadvantageous post-appointment variation.
- Current status through 7 September 2026: Act operative; 22 March 2024 interim refusal; no located final merits ruling/stay.

ADMINISTRATION, STAFF AND TIMETABLE

- Article 324(6): President/Governor supplies staff on ECI request; no separate constitutional election cadre.
- Schedule announcement and statutory notification are distinct steps.
- Section 151A: by-election ordinarily within six months; remaining-term and unavoidable-circumstance exceptions.
- Sections 57, 58, 58A: adjournment/fresh poll/booth-capturing remedies; use exact trigger.
- Countermanding is not an unbounded Article 324 discretion.

RPA 1950, ROLLS AND DELIMITATION

- RPA 1950: allocation/constituency framework and electoral rolls.
- Section 19: age and ordinary residence; sections 21-23: revision, correction/deletion and inclusion.
- Four qualifying dates: 1 Jan, 1 Apr, 1 Jul, 1 Oct.
- Roll integrity = inclusion + lawful purification + notice + accessible remedy.
- 2026 INSC 564: limited electoral-purpose citizenship inquiry, not final citizenship adjudication.
- Delimitation Commission is distinct; ECI participates as law provides.

RPA 1951, CANDIDATES AND DISPUTES

- RPA 1951: conduct, qualifications/disqualifications, expenses, corrupt practices, parties and petitions.
- Sections 8-10A: principal statutory disqualification grounds.
- *Lily Thomas* (2013): section 8(4) shield invalid; qualifying conviction consequence immediate.
- Section 123: corrupt practices; *Abhiram Singh* (2017) broad identity/religious-appeal control.
- Affidavits: *ADR* (2002), *PUCL* (2003); criminal-antecedent publicity: *Public Interest Foundation* (2018/2020).
- Article 329(b) -> sections 80/80A High Court petition -> section 116A Supreme Court appeal.
- *Ponnuswami* (1952): no mid-process derailment; *Ashok Kumar* (2000): limited facilitating review.

PARTIES, SYMBOLS AND MCC

- Section 29A registration != recognition != reserved symbol.
- *Institute of Social Welfare* (2002): no general deregistration power; narrow exceptions.
- Symbols Order 1968 and paragraph 15 govern recognised-party splits.
- *Kanhiya Lal Omar* (1985): Symbols Order valid.
- MCC: non-statutory, begins with schedule announcement, ends with completion.
- MCC breach may overlap with RPA/BNS/other law; code alone is not a full penal statute.
- Reform: retain speed, publish reasons, codify selected serious fields.

MONEY, MEDIA AND TECHNOLOGY

- Candidate expense account/ceiling != identical party-spending ceiling.
- Paid news: evidence -> monitoring -> possible expense attribution/legal action.
- Social media: ad certification, disclosure and applicable law; ECI is not universal platform regulator.
- *Subramanian Swamy* (2013): VVPAT paper trail.
- *ADR v. ECI* (2024): no paper-ballot return or universal count; limited preservation/verification safeguards.
- 2025 clarification: diagnostic certification and candidate-requested protocol.
- Technology answer: architecture + custody + audit + complaint remedy.

RAPID PRELIMS TRAPS

1. ECI != SEC.
2. CEC chairmanship != superior vote.
3. EC removal != CEC removal.
4. Six-year term is statutory.
5. Search Committee is Law-Minister-led.
6. Salary is Supreme-Court-judge salary in enacted text.
7. RPA 1950 != RPA 1951.
8. Registration != recognition.
9. MCC non-statutory != legally irrelevant.
10. NOTA != automatic repoll.

11. ECI assists delimitation != sole authority.
12. Article 324 gap-filling != power contrary to rules.

MAINS ANSWER SPINE

1. Define ECI as a constitutional trust institution under Article 324.
2. Map the exact Article/statute and decision-maker.
3. State one unique claim.
4. Add named evidence - provision, case, official rule or dated status.
5. Explain what the evidence proves institutionally.
6. Qualify power with statutory, federal, rights or court boundary.
7. Offer accountable reform, not merely more power.
8. Conclude: electoral trust requires lawful, observable and correctable administration.